



## CHAPTER viii

An Act to provide for the closing of part of Ferry Road in the urban district of Esher in the county of Surrey during the Hurst Park races and for closing a footpath and for other purposes.

[26th April 1949.]

**W**HEREAS in order to effect improvements in the Hurst Park Race Course it is expedient to construct an extension of the course which will cross Ferry Road in the urban district of Esher in the county of Surrey (which road is a highway not repairable by the inhabitants at large) and it is expedient to make provision for the closing of part of that road on the days on which races are held at Hurst Park:

And whereas it has been alleged that there was a public footpath across Hurst Park extending from the southerly side of the towing path at Hampton Ferry in a southerly direction to a point in Hurst Road approximately four hundred and seventy-three yards from the junction of that road with Ferry Road but that footpath (if it existed) has not been used by the public for upwards of fifty years and for the removal of doubt it is expedient that the provisions of this Act in regard thereto should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Hurst Park Race Course Short title. Act 1949.



Interpretation.

2. In this Act unless the subject or context otherwise requires—

“the Company” means the Hurst Park Club Syndicate Limited and includes their successors in title;

“race day” means a day on which racing takes place at the Hurst Park Race Course;

“the authorised part of Ferry Road” means so much thereof as extends from its junction with Hurst Road to a point approximately one hundred and seventy-three yards therefrom measured along the course of the road;

“the district council” means the Esher Urban District Council;

“pedestrian” includes a person in charge of a bicycle tricycle perambulator or handcart (not being mechanically propelled).

Temporary  
closing and  
adaptation of  
part of Ferry  
Road.

3.—(1) On any race day the Company may close to the public the authorised part of Ferry Road during a period which except with the consent of the district council shall not exceed—

(a) in the case of vehicular traffic a period beginning not earlier than forty-five minutes before the advertised time of the first race on a race day and ending not later than forty-five minutes after the last race on that day:

Provided that except with such consent as aforesaid the period shall not exceed six hours on any one day;

(b) in the case of pedestrian traffic the period mentioned in paragraph (a) of this subsection except that the authorised part of Ferry Road shall be open to pedestrian traffic for not less than ten minutes in every half-hour.

(2) Notwithstanding the closing of the authorised part of Ferry Road in accordance with the foregoing provisions of this section an ambulance or other vehicle shall be permitted to pass along the same except when a race is in progress if that is essential for the purpose of saving or protecting life or property.

(3) The powers conferred on the Company by the foregoing provisions of this section to close the authorised part of Ferry Road shall not be exercised on more than twenty race days in any year.

(4) For the purpose of closing the authorised part of Ferry Road in accordance with the provisions of this section the Company may place on their land adjoining the road gates which may be closed across the road during the period mentioned in paragraph (a) of subsection (1) of this section except when



the road is open to pedestrian traffic under paragraph (b) of that subsection.

(5) For the purpose of the races the Company may adapt the authorised part of Ferry Road and place such material thereon as they may consider necessary.

(6) After the last race on each race day the Company shall with all convenient speed remove any material placed by them on the authorised part of Ferry Road under the last preceding subsection.

(7) All public rights of way and other rights over and along the authorised part of Ferry Road shall be suspended during the period mentioned in paragraph (a) of subsection (1) of this section:

Provided that nothing in this subsection shall affect the right of a pedestrian to pass along the road during any period in which it is open to pedestrians but not to vehicular traffic.

(8) When in pursuance of this section the authorised part of Ferry Road is closed the Company shall post a notice at each end of such part intimating that it is closed by the Company under the authority of this Act.

4.—(1) Until Ferry Road between its junction with Hurst Maintenance Road and Hampton Ferry or any part thereof becomes repairable by the district council or other authority the Company shall maintain the same or the part thereof not so repairable in a reasonable state of repair suitable for vehicles and pedestrians having regard to the traffic by which it is used.

(2) Any question which may arise between the Company and the district council under subsection (1) of this section shall be determined by arbitration in accordance with the Arbitration Acts 1889 to 1934 the arbitrator unless otherwise agreed being appointed by the President of the Institution of Civil Engineers.

5. The footpath referred to in the preamble to this Act shall remain closed and all rights (if any) which existed whether public or otherwise over and along the same shall cease.

6. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for town  
and country  
planning.  
10 & 11 Geo. 6.  
c. 51.

7. The costs charges and expenses of and incidental to the preparing obtaining and passing of this Act shall be paid by the Company.

Costs of Act.



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